

26STUD02028 26STUD02028

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Division: Civil Law and Motion

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Case Number: 26STUD02028 Hearing Date: September 16, 2026 Dept: 529

ISLAND PROPERTY, L.L.C. VS MALIK BOOKS
LLC

PLAINTIFF'S MOTION FOR SUMMARY JUDGMENT
OR, IN THE ALTERNATIVE, SUMMARY ADJUDICATION

Date of Hearing: September

16, 2026 Trial

Date: None

set

Department: 529 Case No.: 26STUD02028

Moving Party: Plaintiff

Island Property, LLC

Responding Party: Defendant

Malik Books LLC

BACKGROUND

On February 25, 2026, Plaintiff Island

Property, L.L.C filed the instant Unlawful Detainer Action against Malik Books

LLC. Plaintiff alleges Defendant failed to comply with a 30-Day Notice to

Perform Covenant or Quit. The Notice had identified multiple lease violations

by Defendant including performing alterations/construction without providing

Plaintiff copies of permits, plan specifications, and proof of city inspector

approval and installing signage without permits and Plaintiff's prior approval.

[TENTATIVE] RULING

Plaintiff's Motion for Summary Judgment or, in the alternative, Summary Adjudication is GRANTED IN PART.

REQUEST FOR JUDICIAL NOTICE

Defendant

Malik Books, LLC this court take judicial notice of several court documents.

(See RJN, Exh. 1 – 9.) The court GRANTS the request for judicial notice as to the existence of these documents.

EVIDENTIARY OBJECTIONS

Defendant Malik

Books, LLC objections to Evidence

The court

sustains the objections to No. 13.

Plaintiff

Island Properties Objections to Evidence

The court

SUSTAINS the objections to Nos. 1, 2, 3, and 6.

DISCUSSION

Plaintiff Island Property, LLC moves

this court, pursuant to Code of Civil Procedure section 437(c) and Section 1170.7, for summary judgment of the Unlawful Detainer Complaint in favor of Plaintiff and against Defendant Malik Books, LLC. Plaintiff also seeks summary adjudication of Defendant's affirmative defenses.

A "motion for summary judgment shall be

granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law." (CCP § 437c(c).) Once the moving party has met its burden of demonstrating that there is no triable issue as to any material fact, the

opposing party cannot rest upon the mere allegations of the pleadings but must present admissible evidence showing that there is a genuine issue for trial. (Aguilar v. Atlantic Richfield Company (2001) 25 Cal.4th 826, 844.) "In ruling on the motion, the court must consider all of the evidence and all of the inferences reasonably drawn therefrom... and must view such evidence... in the light most favorable to the opposing party." (Id. at 844-845; CCP § 437c(p)(2).) "A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty." (CCP § 437c(f)(1).)

Plaintiff filed this action for unlawful detainer due to Defendant's failure to comply with a 30-day Notice to Perform Covenant or Quit. Plaintiff maintains the undisputed facts establish that there are no triable issues of fact and no applicable affirmative defenses as to this UD Action. To establish a cause of action for unlawful detainer for breach of the lease agreement under Code of Civil Procedure Section 1161, a plaintiff must show the following:

1.

That plaintiff owns or leases the property;

2.

That plaintiff rented or subleased the property to defendant;

3.

That under the rental agreement, defendant agreed to perform certain conditions;

4.

That defendant failed to perform those requirement(s);

5.

That plaintiff properly gave defendant three days' written notice to correct failure to perform or vacate the property;

6.

That defendant did not correct failure to perform;

7.

That plaintiff properly gave defendant three days' written notice to vacate the property; and

8.

That defendant is still occupying the property.

Plaintiff presents evidence of the following: Plaintiff owns the Premises (Frazier Decl. ¶1, Truong Exhs. 8-9.) As the owner and landlord of the Premises, Plaintiff entered into the Lease with Defendant on or about July 29, 2024. (Frazier Decl. ¶3, Exh. 2.) The Lease contains express covenants by which Defendant must abide including Plaintiff's prior approval before installing any signage at the Premises. (Frazier, ¶4, Exh. 2; Truong, Exhs. 8-9.) As early as July 2025, Plaintiff notified Defendant that they were in violation of Lease by serving Notice 1. (Truong Decl., Exh. 1.) Defendant completely failed to take action to cure Notice 1, which resulted in Plaintiff serving Notice 2 on September 15, 2025 as stated in said notice. (Truong Decl., Exh. 2.) Between July 30, 2025 and December 4, 2025, Plaintiff's attorney communicated with Defendant's attorney repeatedly in an attempt to bring Defendant into compliance with the signage issues under the Lease. (Truong, ¶6, Exh. 3.) On January 6, 2026, Plaintiff received a reminder notice from the development management about signage requirements for all tenants in the development. (Frazier, ¶8, Exh. 3.) Plaintiff maintains the signage installed by Defendant at the Premises did not comply with these rules and finally, Notice 3 was served on Defendant on January 9, 2026. (Truong Decl. ¶7, Exh. 4.) Moreover, Notice 3 was served to Defendant in multiple manners. First, it was served via Fedex pursuant to Paragraph 23 of the Lease to the address where Defendant's registered agent for service is located and the address listed next to Defendant's signature block on the Lease. (Truong, ¶8, Exhs. 5-7.) Second, Notice 3 was served by posting and mailing a copy to the Premises. (Tilcock Decl. ¶2-4, Exhs. A – C.) And Notice 3 was served via email to Defendant's attorney of record. (Truong Decl. ¶9.) Plaintiff's further present evidence Defendant insists that they did not need to comply and Defendant still occupies the Subject Property. (Frazier Decl. ¶¶9-10.)

In opposition, Defendant argues whether any covenant was breached is genuinely disputed, the credibility of Plaintiff's notice-service evidence is itself a triable issue, and Plaintiff waived strict compliance with the lease covenant by accepting the rent. Specifically, Defendant contends reading Paragraph 61 in full, it affirmatively grants Defendant the right to "place the main sign over the Entry Door and two additional smaller signs," reserves to Plaintiff approval of "[s]ize and exact location" only, and makes the tenant "responsible for design." That is irreconcilable with Paragraph 34's grant of "sole discretion" over "size, shape, color, design, and location". Moreover, the issues with the service could weigh against Plaintiff and whether Plaintiff's conduct here waived strict compliance, or estops it from forfeiting the leasehold on the demands in Notice 3, is at minimum a jury question.

The court finds there is no conflict between Paragraphs 34 and 61 of the Lease. As noted by Plaintiff, the fact that Paragraph 61 allows installation of specified signs does not relieve Defendant of the obligation to obtain Plaintiff's prior written consent for any such signs as required by Paragraph 34. In other words, the landlord retains approval authority over the basic design framework under Paragraph 34, while the tenant handles the technical design work, permitting, and installation logistics under Paragraph 61. Further, Paragraph 61 provides the Landlord must allow one sign over the entry and one side on the front and one on the back of the building, but does not abrogate its right to determine the size, style and content of such signage. In the instant matter, Notice 3 provides Defendant breached the Lease by installing signage without first submitting plans as required by the Lease, failing to obtain permits for the signage (which Tenant was responsible for doing) and failing to remove such signage upon the Landlord's demand.

However, the court finds a triable issue of material fact as to service. Under California Code of Civil Procedure section 437c(e), the repeated errors, timing inconsistencies, and acknowledged problems with the same service apparatus create material questions about the declarant's truthfulness and intent that cannot be resolved without cross-examination.

As for waiver, the court finds there is a triable issue of material fact as well. Even with a no waiver provision, a tenant can still show waiver if the landlord lets the first notice lapse

through conduct that demonstrates acceptance of benefits. (See Runnymede Holdings, LLC v. Foster (2023) 96 Cal.App.5th Supp. 1 holding “[e]ven if a lease agreement contains an antiwaiver clause, a party’s conduct may, nonetheless, constitute waiver.”)

Based on the foregoing, the motion for summary judgment is DENIED.

Affirmative Defenses

In the alternative, Plaintiff moves for summary adjudication on Defendant’s affirmative defenses.

First, Plaintiff argues Defendant relies on erroneous interpretation of the Lease to argue against Plaintiff’s right to control the signage at the premises. As noted above, the court finds the lease interpretation defense not subject to dispute. The court grants summary adjudication as to the second, third, fifth and tenth affirmative defenses.

Next, Plaintiff argues the sixth, seventh, eighth and fifteenth affirmative defenses are all based upon Defendant’s arguments that because he filed the civil action entitled Malik Books LLC v. Island Property LLC, et al. (Case No. 25STCV25012) (“Civil Action”) on August 26, 2025, this case cannot proceed forward. The court denies the motion for summary adjudication as to these affirmative defenses. The court finds Plaintiff has not met their burden.

Next, the court finds Plaintiff has not met their burden establishing there is no waiver or estoppel defense available to Defendant as noted above.

As for the tenth affirmative defense and the Scrivner’s error, the court denies the motion for summary adjudication. Whether a claimed scrivener error is truly a good faith mistake or intentional wrongdoing presents a factual question that cannot be resolved on summary adjudication.

As for the eleventh affirmative defense

based on SB 1103, the court agrees a defendant generally cannot invoke the Act's protections if it first identified itself as a qualified commercial tenant only after the three-day notice to pay or quit had already been served. For fixed-term leases or periodic tenancies longer than one month, the tenant must have provided the written notice and self-attestation before or upon execution of the lease, and annually thereafter.

As for the fourteenth affirmative defense, the court agrees Defendant cannot have a defense under Civil Code section 1942.5 because said code applies only to residential tenancies, while the instant action involves commercial space. The court denies the motion for summary adjudication as to the twelfth and thirteenth causes of action.

Based on the foregoing, the motion for summary adjudication is granted as to the second, third, fifth, tenth, eleventh and fourteenth affirmative defenses.